

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:  
Purchased:

-----X  
DANIELLE MILLER,

Plaintiff designates  
Bronx County as the place of trial

Plaintiff,

The basis of the venue is where the  
tort arose and where Plaintiff resides

-against-

CITY OF NEW YORK, individually and in their capacities  
as New York City Police Officers, REYNA MORAN, and  
JOHN or JANE DOE 1-10,

**SUMMONS**

Defendants.

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**TO THE ABOVE-NAMED DEFENDANT:**

**YOU ARE HEREBY SUMMONED**, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York  
June 20, 2019



**SIM & DEPAOLA, LLP**

**BY: Samuel DePaola, Esq.**

*Attorneys for Plaintiff(s)*

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400

TO:

**CORPORATION COUNSEL OF THE  
CITY OF NEW YORK**

100 Church Street  
New York, New York 10007

**POLICE OFFICER REYNA MORAN  
47<sup>TH</sup> NYPD PRECINCT**

4111 Laconia Ave,  
The Bronx, NY 10466

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX-----X  
DANIELLE MILLER,

Index No.:

Plaintiff,

-against-

**VERIFIED COMPLAINT**CITY OF NEW YORK, individually and in their capacities  
as New York City Police Officers, REYNA MORAN, and  
JOHN or JANE DOE 1-10,Defendants.  
-----X

Plaintiff, DANIELLE MILLER, by her attorneys, Sim & DePaola, LLP, for her  
complaint against the above Defendants, alleges as follows:

1. The claim arises from a June 16, 2018 incident, in which defendants, acting under color of state law, unlawfully arrested and detained Ms. Miller. Ms. Miller was subsequently charged with Assault and Harassment. As a result, Ms. Miller was deprived of her liberty and suffered physical and psychological injuries. Ms. Miller was wrongfully detained for two (2) days or approximately thirty (30) hours. All charges were dismissed on June 17, 2018 at the arraignment before Hon. Judge M. Bejarano of the Bronx County Supreme Court.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

**PARTIES**

3. Plaintiff DANIELLE MILLER (“Ms. Miller”) resides at 1771 Monroe Avenue, Apt.5C, Bronx County, State of New York.
4. The Defendant City of New York (or “the City”) is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including corrections officers, investigators, detectives and/or supervisory officers, as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Reyna Moran (“Moran”) was, at all times here relevant, a police officer employed by the NYPD, and as such, was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Moran was, at the times relevant herein, a New York City Police Officer under Shield No. 3218, and Tax No. 933577 and assigned to the 47<sup>th</sup> NYPD Precinct, located at 4111 Laconia Ave, The Bronx, New York. Defendant Moran is being sued in his individual and official capacities.
8. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were police officers, investigators, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names, shield

numbers, and/or tax registry numbers of Defendants John or Jane Doe 1 through 10, as such knowledge is within the exclusive possession of defendants.

9. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York and/or the NYPD.

Defendants John or Jane Doe 1 through 10 are being sued in their individual and official capacities.

10. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

11. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.

12. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.

13. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.

14. This action has been commenced within one year and ninety days from the relevant accrual dates.

### **FACTUAL CHARGES**

15. On June 16, 2018, at approximately 2:00 p.m., Ms. Miller and Christopher Maximo went to the vicinity of 222<sup>nd</sup> Street and Bronxwood Avenue, Bronx, New York.

16. Upon arrival, Christopher Maximo got into an argument with a man named Carlton Orr.

17. Christopher Maximo and Carlton Orr then engaged in a physical altercation.
18. At no time did Ms. Miller assault Carlton Orr.
19. During the altercation Carlton Orr threw a brick at the windshield of Ms. Miller's vehicle which caused the windshield to be seriously damaged.
20. Ms. Miller then drove to the 47<sup>th</sup> precinct to file a report regarding Carlton Orr's criminal conduct.
21. Upon arrival at the precinct Ms. Miller showed Carlton's ID and his phone to a female Police officer Jane Doe I at the front desk and reported the incident.
22. After Ms. Miller reported the crime, she drove back to said location with Christopher Maximo.
23. When Ms. Miller and Christopher Maximo arrived at the location, approximately six (6) police officers, including Defendant Moran, approached her vehicle.
24. Ms. Miller and Christopher Maximo stepped out of her vehicle and were illegally placed handcuffs by defendants including defendant Moran, without any probable cause or reasonable suspicion to do so.
25. Ms. Miller had no committed any crimes or violations of the law.
26. Defendants, including Moran, fabricated a narrative in which they claimed Ms. Miller was involved in a physical altercation and she committed assault and harassment, when they knew such claim was untrue and a complete fabrication.
27. Ms. Miller was put in a police vehicle and transported to the 47<sup>th</sup> precinct.
28. As a result of Defendants', including Moran's, knowingly and intentionally false statements and allegations, Ms. Miller was falsely arrested under arrest number B18627700.

29. Defendant Moran was Ms. Miller's arresting officer and signed the Criminal Court Complaint, in which she misspelled Ms. Miller's first name a Daniel.
30. Defendant Moran falsely arrested Plaintiff claiming she committed assault and harassment.
31. Defendant Moran was fully aware that Plaintiff did not commit assault and harassment as she was not involved in any physical altercation, but knowingly and intentionally chose to state Plaintiff committed assault and harassment to justify and excuse an otherwise invalid arrest.
32. Ms. Miller was never involved in any physical altercation, never assaulted or harassed anybody.
33. Plaintiff did not commit any crimes or violations of the law.
34. At the 47<sup>th</sup> precinct Plaintiff was illegally fingerprinted and photographed.
35. After being held in a cell at the precinct for approximately eight (8) hours, Ms. Miller was sent to Central Booking for a crime she did not commit.
36. At the Central Booking Plaintiff was illegally fingerprinted and photographed.
37. Ms. Miller did not commit any crimes or violations of the law.
38. Defendants, including Moran, intentionally provided said false information to the Bronx County District Attorney's Office, so that a criminal prosecution would be initiated against Ms. Miller, namely that she committed assault and harassment.
39. However, all charges were dismissed on June 17, 2018 at the arraignment before Hon. Judge M. Bejarano of the Bronx County Supreme Court.
40. At no point did Defendants, including Moran, ever observe Ms. Miller commit any crime or offense.

41. At no point were the defendants, including Moran, ever told by any witnesses that Ms. Miller committed any crime or violation of the law.
42. Defendants, including Moran, had no probable cause or reasonable suspicion to arrest, detain or stop Ms. Miller.
43. Defendants, including Moran, never possessed probable cause to believe a prosecution would succeed against Plaintiff, that Plaintiff was guilty of any crime.
44. While Plaintiff was unlawfully detained, Defendants, including Moran, acting with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for assault and harassment.
45. Defendants, including Moran, never possessed a legally issued warrant for plaintiff's arrest.
46. Defendants, including Moran, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely stopping and arresting an individual illegally without a search warrant, probable cause or reasonable suspicion.
47. Defendants, including Moran, suppressed evidence and engaged in conduct undertaken in bad faith.
48. Defendants have displayed a pattern and practice of falsely alleging an individual was found commit assault and harassment to justify otherwise unwarranted arrests.
49. Defendants have displayed a pattern and practice of falsely arresting individuals present due to an allegation when they knew such allegation was untrue and a complete fabrication.



50. Plaintiff was wrongfully incarcerated for two (2) days or approximately thirty (30) hours, until she was released on or about June 17, 2018.
51. During all of the events described, the Defendants, including Moran, acted maliciously and with intent to injure Plaintiff.
52. Defendant Moran was fully aware that there was no probable cause to believe a prosecution would succeed against Ms. Miller, because Defendant Moran knew that Ms. Miller never committed assault and harassment and that she was an innocent woman.
53. At all times relevant hereto, Defendants, including Moran, were involved in the decision to arrest Plaintiff without probable cause. JOHN and/or JANE DOES 1 through 10 failed to intervene when they observed Plaintiff being arrested without probable cause.
54. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's arrest without probable cause.
55. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
56. The instant arrest of Plaintiff without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest and prosecute Plaintiff.

57. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of Defendants.
58. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that Defendant City knew, or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Ms. Miller.
59. As a direct and proximate result of the acts of the defendants, including Moran, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

**FIRST CAUSE OF ACTION**

False Arrest and False Imprisonment Under  
New York State Law

60. The above paragraphs are here incorporated by reference as though fully set forth.
61. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
62. Plaintiff was conscious of his confinement.
63. Plaintiff did not consent to his confinement.
64. Plaintiff's arrest and false imprisonment was not otherwise privileged.

65. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

66. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

67. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction

**SECOND CAUSE OF ACTION**

False Arrest and False Imprisonment Under  
42 U.S.C. § 1983 Against Individual Defendants

68. The above paragraphs are here incorporated by reference as though fully set forth.

69. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

70. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

71. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

72. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

73. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**THIRD CAUSE OF ACTION**Assault and Battery Under  
New York State Law

74. The above paragraphs are here incorporated by reference as though fully set forth.
75. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.
76. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
77. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
78. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
79. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**FOURTH CAUSE OF ACTION**Excessive Force Under  
42 U.S.C. § 1983 Against Individual Defendants

80. The above paragraphs are here incorporated by reference as though fully set forth.
81. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
82. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
83. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

84. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**FIFTH CAUSE OF ACTION**

Malicious Prosecution Under  
New York State Law

85. The above paragraphs are here incorporated by reference as though fully set forth.

86. Defendants initiated the prosecution against Plaintiff.

87. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

88. Defendants acted with malice.

89. The prosecution was terminated in Plaintiff's favor when the criminal charges were dismissed and sealed.

90. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

91. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

92. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**SIXTH CAUSE OF ACTION**

Malicious Prosecution Under  
42 U.S.C. § 1983 Against Individual Defendants

93. The above paragraphs are here incorporated by reference as though fully set forth.

94. Defendants initiated the prosecution against Plaintiff.

95. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
96. Defendants acted with malice.
97. The prosecution was terminated in Plaintiff's favor when all charges were dismissed and sealed.
98. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
99. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
100. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**SEVENTH CAUSE OF ACTION**

Malicious Abuse of Process Under  
New York State Law

101. The above paragraphs are here incorporated by reference as though fully set forth.
102. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
103. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
104. Defendants intended to inflict substantial harm upon Plaintiff.
105. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
106. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
108. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**EIGHTH CAUSE OF ACTION**

Malicious Abuse of Process Under  
42 U.S.C. § 1983 Against Individual Defendants

109. The above paragraphs are here incorporated by reference as though fully set forth.
110. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
111. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
112. Defendants intended to inflict substantial harm upon Plaintiff.
113. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
114. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.
115. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
116. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**NINTH CAUSE OF ACTION**Failure to Intervene Under  
New York State Law

117. The above paragraphs are here incorporated by reference as though fully set forth.
118. Those Defendants that were present but did not actively participate in the  
aforementioned unlawful conduct, observed such conduct, had an opportunity to  
prevent such conduct, had a duty to intervene and prevent such conduct and failed to  
intervene.
119. Defendant City, as employer of the individual Defendants, is responsible for their  
wrongdoing under the doctrine of *respondeat superior*.
120. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the  
damages hereinbefore alleged.
121. By reason of the above, the amount of damages sought on this cause of action exceeds  
the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**TENTH CAUSE OF ACTION**Failure to Intervene Under  
42 U.S.C. § 1983 Against Individual Defendants

122. The above paragraphs are here incorporated by reference as though fully set forth.
123. Those Defendants that were present but did not actively participate in the  
aforementioned unlawful conduct observed such conduct, had an opportunity to  
prevent such conduct, had a duty to intervene and prevent such conduct and failed to  
intervene.
124. Accordingly, the Defendants who failed to intervene violated the Fourth and  
Fourteenth Amendments.



125. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

126. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

127. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**ELEVENTH CAUSE OF ACTION**

Negligent Hiring, Retention and Supervision Under  
New York State Law

128. The above paragraphs are here incorporated by reference as though fully set forth.

129. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.

130. Defendant City breached that duty of care.

131. Defendant City placed defendants in a position where they could inflict foreseeable harm.

132. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

133. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

134. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

135. By reason of the above, the amount of damages sought on this cause of action exceeds

the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**TWELFTH CAUSE OF ACTION**  
Municipal “*Monell*” Liability Under  
42 U.S.C. § 1983 Against Defendant City

136. The above paragraphs are here incorporated by reference as though fully set forth.
137. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.
138. Defendant City’s illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
139. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City’s employees.
140. Defendant City’s employees engaged in such egregious and flagrant violations of Plaintiff’s Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City’s employees.
141. Defendant City’s conduct violated Plaintiff’s rights under the Fourth and Fourteenth Amendments to the United States Constitution.
142. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
143. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**WHEREFORE**, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;

Together with the costs and disbursements of this action.

Dated: Bayside, New York  
June 27, 2019

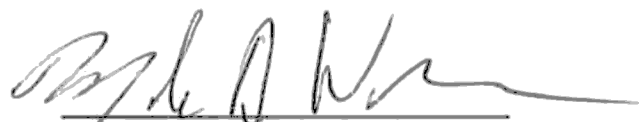
A handwritten signature in black ink, appearing to read 'Markus A. Wilson', is written over a horizontal line.

SIM & DEPAOLA, LLP  
By: Markus A. Wilson, Esq.  
Attorneys for Plaintiff  
4240 Bell Blvd., Suite 500  
Bayside, NY 11361  
T: (718) 281-0400  
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## ATTORNEY VERIFICATION

I, **Markus A. Wilson**, an attorney admitted to practice in the courts of New York State, state that I am an associate of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff regarding the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason this verification is not signed by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York  
June 27, 2019

  
\_\_\_\_\_  
MARKUS A. WILSON, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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DANIELLE MILLER,

Plaintiff,

-against-

CITY OF NEW YORK, individually and in their capacities as New York City Police Officers,  
REYNA MORAN, and JOHN or JANE DOE 1-10,

Defendants.

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**SUMMONS AND VERIFIED COMPLAINT**

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**SIM & DEPAOLA, LLP**  
BY: MARKUS A. WILSON  
Attorney for Plaintiff(s)  
42-40 Bell Boulevard  
Bayside, NY 11361  
Tel. (718) 281-0400

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To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

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Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for